

Case Title: Anita Sharma vs Unknown Cyber Fraudster

Date of Incident: 22 August 2023

Case Summary:

Ms. Anita Sharma reported a financial fraud where she received a phone call from a person claiming to be a bank representative.

The caller requested verification of her bank account details and persuaded her to share a one-time password (OTP) sent to her phone.

Shortly after sharing the OTP, an amount of ₹75,000 was transferred from her bank account to an unknown account.

The victim immediately reported the incident to the bank and filed a complaint at the local police cybercrime division.

Evidence Submitted:

- Bank transaction statement
- Phone call record
- Complaint filed with cybercrime portal

Legal Questions:

Whether the accused can be prosecuted under cheating and cybercrime laws.

Relevant Laws:

Indian Penal Code Section 420 – Cheating and dishonestly inducing delivery of property.

Information Technology Act Section 66D – Cheating by personation using computer resources.

Information Technology Act Section 43 – Unauthorized access to computer systems.